

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 12-18
Amends Title 16 to Include Provisions Regarding the Withdrawal
of
Letters of Resignation**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, no provision exists regarding the withdrawal of a letter of resignation submitted by a Legislator to the Chairperson or Secretary of the Tribal Legislature.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature amends Title 16 of the Code of the Chickasaw Nation, to wit:

Section 16-108, Members & Officers - General Provisions, part (A), shall be amended to read as follows:

(A) 1. In the event a member of the Legislature wishes to resign from his elected office, the Legislator shall submit a signed letter of resignation to the Chairperson or Secretary of the Legislature.

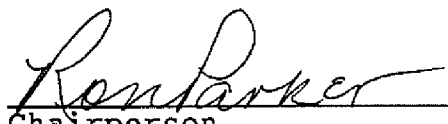
2. The letter of resignation shall bear the date it was written and the date the Legislator's resignation will become official. The reading of the letter of resignation shall be placed on the Agenda for the next scheduled Legislative Session.

3. Official public notice of the letter of resignation shall be accomplished by the reading of the letter of resignation at the next scheduled Legislative Session; and, once it is read into the record of the Legislative Session, the letter of resignation cannot be withdrawn. After the reading of the letter of resignation into the record of the Legislative Session, copies of the letter shall be forwarded to the Governor and the Election Secretary of the Chickasaw Nation after the conclusion of the Legislative Session.

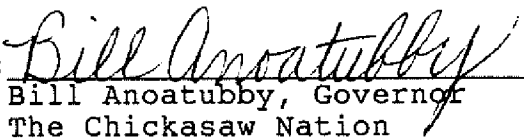
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4.A Legislator may withdraw a letter of resignation up to the time prior to it being made a part of the public record of the Legislative Session by, personally, submitting a letter stating that the letter of resignation is withdrawn, to the Chairperson and the Secretary of the Legislature; and, such submittal, if done during the Legislative Session, shall be accomplished by the Legislator rising to address the Chair on a "Question of Personal Privilege", in accordance with Roberts Rules of Order. The Chairperson is obliged to recognize any Legislator rising on a "Question of Personal Privilege". The Legislator shall state that withdrawal of the letter of resignation is being done with the delivery of letters of withdrawal that the Legislator, immediately, submits to the Chairperson and the Secretary of the Legislature. If delivery of the letters that withdraw the letter of resignation are done prior to the commencement of the Legislative Session, then such reading of the letter of resignation shall be stricken from the Agenda of the Legislative Session as if it never existed.

Executed in regular session of the Chickasaw Tribal Legislature,
meeting at Ada, Oklahoma, on May 19, 1995, by a vote of 12 ayes,
0 nays, 1 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: 5-22-95

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of
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Explanation: This resolution outlines the procedures to withdraw letters of resignation.

Requested by: Ron Parker, Chairperson

Presented by: Mrs. Mevelyn Kirkpatrick, Chairman
Legislative Committee